

JUDGMENT SHEET
IN THE PESHAWAR HIGH COURT,
MINGORA BENCH (DAR-UL-QAZA), SWAT
(Judicial Department)

1. W.P No.1517-M/2025
Dilawar Khan v the State
2. W.P No.1518-M/2025
Naseem Jan and others v. DPO Dir Lower and others
3. W.P No.1521-M/2025
Gul Zada v. The State and others
4. W.P No.1563-M/2025
Siraj Muhammad v. DPO Dir Lower and others
5. W.P No.1578-M/2025
Sher Nawab Khan and others v. DPO Dir Lower and others
6. W.P No.1627-M/2025
Mihtab Hayat Khan v. DPO Dir Lower and others
7. W.P No.1628-M/2025
Sabz Ali Khan v. DPO Dir Lower and others
8. W.P No.51-M/2026
Malak Khan Badshah v. DPO Dir Lower and others
9. W.P No.53-M/2026
Haji Khan v. The State and others.

For petitioner	Mr. Javed Akhtar Tajak, Advocate.
For Respondents	Mr. Haq Nawaz Khan, Addl: A.G. along with Inspector Mr. Zahir Shah.
Assistance	Mr. Qaiser Abbas, Former Research Officer, Supreme Court of Pakistan.
Date of hearing	16.06.2026

J U D G M E N T

Dr. Khurshid Iqbal, J.-

1. In the subject constitutional petitions, the grievance of all the petitioners is that the Lower Dir's District Police Officer (respondent No. 1) has posted their names and pictures on social media platforms, such as, Facebook, tagging them as touts, land grabbers, *qabza* mafia, and drug peddlers. They contend that such information is false, without lawful justification, illegal, and in utter violation of their constitutionally guaranteed fundamental rights. Claiming to be law-abiding and peaceful citizens who believe in the supremacy of the law and the Constitution, the petitioners pray for a declaration that the published information in question is false, unlawful, and unconstitutional. They further pray for directions to respondent No. 1 to: (a) stop publishing such information on social media platforms; (b) immediately remove it from the official Facebook account of the District Police; (c) refrain from making raids on their houses and harassing them on the basis of such information; and (d) respect their fundamental rights; alongside any other relief this Court may deem appropriate.

2. Today, the learned Additional Advocate General (A.A.G.), along with a departmental representative of the police department, appeared before the Court on behalf of the respondents. At the very outset, the learned A.A.G. stated at the bar that respondent No. 1 (the concerned DPO) has already been transferred from the District. He added that the information in question has been removed from the social media platforms and is no longer available.

3. Be that as it may, this Court inquired from the learned A.A.G. under what law and policy the information in question had been posted on social media platforms. The learned A.A.G. could not furnish a satisfactory reply to the Court's query. Instead, he termed it a factual controversy, attempting to question the maintainability of these petitions under the constitutional jurisdiction of this Court. This objection is misconceived. Where executive action is taken wholly without lawful authority and operates to the detriment of the fundamental rights of citizens, the jurisdiction of this Court under Article 199 of the Constitution is squarely attracted, and the mere characterisation of such action as a factual controversy does not oust it, particularly where the foundational fact, namely the posting of the impugned material, has not been denied.¹

4. It is legally well-settled that no state institution, including most notably the police, has any legal authority to brand a citizen as a criminal without lawful justification and in violation of the due process of law. Official machinery cannot be employed to stigmatise citizens without lawful authority. The launching of such platforms to brandish individuals as touts, land grabbers, or *qabza* mafia without any statutory backing constitutes a serious abuse of official authority. The State and its functionaries are creatures of the law and may exercise only such powers as the law confers upon them. No provision of law empowers the police to constitute itself a forum of public condemnation, or to publish, in anticipation of trial, lists branding citizens as criminals. To permit the executive to pronounce guilt through the medium of social media would be to substitute the assertion of the accuser for the verdict of the Court, a course wholly alien to the constitutional scheme.²

5. Such actions directly violate the Presumption of Innocence³, a cornerstone of criminal jurisprudence explicitly protected under the right to

¹ Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973. On the liberal construction of the constitutional jurisdiction for the enforcement of fundamental rights, see *Mst. Benazir Bhutto v. Federation of Pakistan*, PLD 1988 SC 416. It is settled that the constitutional jurisdiction is attracted where the impugned action is taken wholly without lawful authority, and that the existence of a disputed question of fact does not, of itself, oust that jurisdiction where the foundational facts are not in dispute.

² Article 4(2)(a) of the Constitution provides that no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law. A public functionary possesses only such authority as the law confers upon him, and an act done in excess of, or without, such authority is of no legal effect.

³ See, *State of Maharashtra v. Rajendra Jawanmal Gandhi*, (1997) 8 SCC 386. Deprecated trial by press, electronic media or public agitation as against the rule of law. In *Sahara India Real Estate Corporation Ltd. v. Securities and Exchange Board of India*, (2012) 10 SCC 603. *Allenet de Ribemont v. France*, no. 15175/89, judgment of 10 February 1995, the European Court of Human Rights held that Article 6(2)

a Fair Trial (Article 10-A of the Constitution). Furthermore, publicly parading and labelling citizens on social media platforms before a formal conviction by a competent court constitutes an irreversible onslaught on the Inviolability of Dignity of Man and the Privacy of Home (Article 14 of the Constitution)⁴. No state organ has the licence to publicise defamatory lists that damage a citizen's reputation, as the right to life includes the right to a clean and unblemished name.⁵ These guarantees are not ornamental. They impose a positive obligation upon every organ of the State to refrain from conduct that pre-empts the verdict of a Court of competent jurisdiction, and to ensure that the coercive and communicative power of the State is not turned against the dignity of the very citizens it exists to protect. In the digital environment, particularly on an official social-media page, such publication is not a passing administrative notation; it is a State-authored stigma capable of instant circulation, indefinite retention, and repeated republication. The absence of a clear statutory warrant is therefore fatal, for executive convenience cannot be permitted to convert accusation into public condemnation. The legal injury is aggravated, rather than diluted, by the digital forum: social-media communication may reach an audience far beyond the immediate community, may be recirculated by strangers, and, once replicated, may escape effective recall.⁶

6. Nevertheless, it was stated and acknowledged by the learned A.A.G. at the bar that the immediate grievances of the petitioners have already been redressed by the respondents by removing the alleged lists containing their names and pictures from the social media accounts. In view

does not prevent authorities from informing the public about investigations, but requires them to do so with the discretion and circumspection necessary to respect the presumption of innocence; **an unqualified statement by senior police officers identifying a person as involved in murder was treated as a declaration of guilt.**

⁴ Article 14(1) of the Constitution declares that the dignity of man and, subject to law, the privacy of home shall be inviolable. In *Richard v. British Broadcasting Corporation and South Yorkshire Police*, [2018] EWHC 1837 (Ch), the High Court held that **a suspect ordinarily has a reasonable expectation of privacy in respect of a police investigation because of the stigma attached to it.** That approach was thereafter affirmed at the apex level in *Bloomberg LP v. ZXC*, [2022] UKSC 5, where the United Kingdom Supreme Court held that **a person who has not been charged may, in general, have a reasonable expectation of privacy in information concerning a criminal investigation.** *Sciacca v. Italy*, no. 50774/99, judgment of 11 January 2005, where **the release by police of an official photograph of a person under investigation to the press, in the absence of a legal basis, was held to violate the right to respect for private life.**

⁵ Article 9 of the Constitution guarantees that no person shall be deprived of life save in accordance with law; the expression "life" has been construed to extend beyond mere animal existence and to include the right to live with dignity: *Shehla Zia v. WAPDA*, PLD 1994 SC 693.

⁶ On the particular qualities of social-media publication, see House of Lords Select Committee on Communications, Social media and criminal offences, HL Paper 37 (2014-15), paras. 7, 24 and 27-28, noting the scale of Facebook and Twitter, the instantaneous and ubiquitous character of access, the possibility that communications intended for a few may reach millions, and the permanence of online comments; Judicial College, Reporting Restrictions in the Criminal Courts (September 2022), p. 4, observing that reporting restrictions apply to traditional media as well as online media and individual users of social-media websites such as Twitter and Facebook; and Law Commission of England and Wales, Modernising Communications Offences, Law Com No. 399 (2021), paras. 2.1, 3.19-3.22 and 5.17, treating online communications as potentially harmful when sent or posted and recognising the problem of online pile-ons. For peer-reviewed academic treatment, see Peter Coe, "The social media paradox: an intersection with freedom of expression and the criminal law" (2015) 24(1) Information & Communications Technology Law 16-40; Emily B. Laidlaw, "Online Shaming and the Right to Privacy" (2017) 6 Laws 3; and Soroush Vosoughi, Deb Roy and Sinan Aral, "The spread of true and false news online" (2018) 359 Science 1146-1151, finding that false news on Twitter diffuses farther, faster, deeper and more broadly than true news.

of this development, these petitions do not require any further prolongation of proceedings regarding the removal of the information in question.

7. It is clear from the above that the initial action of respondent No. 1 was entirely without lawful justification, statutory backing, or policy. The posting of the information has not been explicitly denied. However, since the names of the petitioners have now been removed from the social media platforms, this Court sees no need for further proceedings on that specific aspect. The subsequent removal of the offending material does not, however, render the controversy as academic. The legality of the impugned executive action remains a matter of public importance, and a declaration is necessary both to vindicate the fundamental rights that were infringed and to guard against any recurrence of like conduct.

8. Consequently, this Court declares the impugned action of posting such defamatory information on social media as against the law and the Constitution, that is to say, to have been taken without lawful authority and to be of no legal effect within the contemplation of Article 199 of the Constitution, and to be violative of the fundamental rights guaranteed under Articles 4, 9, 10-A and 14 thereof, and strictly directs the respondents not to harass the petitioners solely on the basis of the information in question. This Court further directs the worthy Inspector General of Police, Khyber Pakhtunkhwa, to conduct an impartial inquiry into the matter. The inquiry shall, in particular, ascertain the authority, instruction or policy, if any, under which the impugned material came to be posted, and shall determine and fix responsibility therefor. If the allegations levelled by the petitioners regarding unauthorised and malicious posting are proved, respondent No. 1 shall be proceeded against in accordance with the law. The inquiry shall be completed within two months from the date of receipt of a copy of this judgment, and a copy of its report shall be sent to the Additional Registrar of this Court for perusal by this Court in Chamber. These petitions are disposed of accordingly.

Announced

16.06.2026

Sabz Ali/*

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JUDGE

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JUDGE

(D.B) Mr. Justice Dr. Khurshid Iqbal
Mr. Justice Qazi Jawad Ehsanullah